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New gun violence prevention bill introduced in Sacramento

December 6, 2022 | Lassen County Times (CA)
Author: swilliams | Section: News | 684 Words
OpenURL Link

A new measure would impose excise taxes on the sale of guns and ammunition, use proceeds to fund school safety and violence intervention programs, and it's one of a trio of gun violence bills introduced on the first day of the new legislative session.

Assemblymember Jesse Gabriel, Chair of the Gun Violence Prevention Working Group, introduced legislation to impose new excise taxes on the sale of guns and ammunition in the state of California. The proceeds from these taxes would be directed towards efforts to better protect Californians from mass shootings and gun violence, including new school safety measures as well as violence intervention and prevention programs.

The bill—formally known as Assembly Bill 28 — was introduced as part of a trio of gun violence prevention bills authored by Gabriel and other members of the Legislative Working Group. Two additional measures, AB 29 and AB 36 would strengthen California's gun laws to better address incidents of gun violence related to mental health and domestic violence.

AB 29 will enable California residents to voluntarily add their own name to the California "Do Not Sell List" for firearms, which prohibits named individuals from purchasing firearms in the state of California. This proposed law is intended to help prevent both mass shootings and gun suicides, particularly those involving individuals struggling with mental health disorders.

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AB 36 will address the often deadly intersection of domestic violence and gun violence by prohibiting individuals subject to domestic violence protective orders from purchasing or possessing firearms for three years after the expiration of that protective order. More than half of all intimate partner homicides are committed with guns. Indeed, when an abusive partner has access to a gun, a domestic violence victim is five times more likely to be killed.

"Californians are counting on us to do everything possible to keep them safe from mass shootings and gun violence," said Gabriel. "Taxing guns and ammunition sales will enable us to fund more school safety measures and expand proven violence prevention programs. We can and must do more to protect our kids and our communities."

"We know strong gun safety laws save lives," said Shannon Watts, founder of Moms Demand Action and California resident. "These smart gun safety bills will continue California's legacy of fighting gun violence and will provide residents throughout our state peace of mind. Our grassroots army of volunteers thanks Assemblymember Gabriel for listening to advocates and constituents, and we look forward to continuing working together to strengthen California's gun laws to end gun violence."

"This is a time of crisis and challenges — with surging gun sales and violence nationwide — and also opportunity and progress as California leaders continue to lead the way on gun safety reform that is driven by evidence and real impact," said Ari Freilich, State Policy Director for Giffords. "Assemblymember Gabriel has been a consistently strong champion working to make California safer for all who call it home. We look forward to continuing to work with him to strengthen California's investment in violence prevention programs, strengthen protections for survivors of domestic violence, and get California back on the path of expanded safety and opportunity for all."

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"Brady applauds the introduction of these important bills that will better fund and protect communities across California," said Kris Brown, President of Brady. "California has been a consistent leader in gun violence prevention legislation and has some of the strongest gun laws in the country. These bills will add to that strong record by providing sustained funding for community programs, decreasing gun suicide, and protecting victims of domestic violence. Brady thanks Assemblymember Gabriel for his continued leadership and perseverance on this important issue."

2022 is likely to be the second-highest year for mass shootings in the United States on record, with at least 607 mass shootings occurring through Nov. 22. The surge in gun violence comes as firearm purchases rose to record levels in 2020 and 2021, with more than 43 million guns estimated to have been purchased. At the same time, the rate of gun deaths has hit the highest level since 1995, with more than 45,000 fatalities each year.

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- **Citation (apa Style)**
  swilliams. (2022, December 6). New gun violence prevention bill introduced in Sacramento.*Lassen County Times (CA)*. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/18E417618B5AC0E8.